

RECEIVED

APR 16 2026

NOTICE OF ACCELERATION AND NOTICE OF TRUSTEE'S SALEKARA SANDS
CLERK OF THE COUNTY COURT
NUECES COUNTY, TEXAS

Assert and protect your rights as a member of the armed forces of the United States. If you are or your spouse is serving on active military duty, including active military duty as a member of the Texas National Guard or the National Guard of another state or as a member of a reserve component of the armed forces of the United States, please send written notice of the active duty military service to the sender of this notice immediately.

DEED OF TRUST INFORMATION:

Date: **February 29, 2024**

Grantor(s): **Englebert Devera and Noemi Devera, Husband and Wife**

Original Mortgagee: **Mortgage Electronic Registration Systems, Inc., as nominee for OCMBC, Inc.**

Original Principal: **\$222,750.00**

Recording Information: **2024006580**

Property County: **Nueces**

Property: **Being a 0.2435 Acres (10,608 Square Feet) of an acre known as "Tract One (1)" out of Lot 12, Block C, Flour Bluff Estates (F.B.E.) Subdivision as recorded in Vol. 8, Page 1-2 Map Records of Nueces County, Texas (M.R.N.C.T.), as conveyed to Caerus Home Solutions LLC, in Document No #2020001652 Official Public Records Nueces County, Texas (O.P.R.N.C.T.), said 0.2435 of an acre (10,606 Square Feet) being more particularly described by metes and bounds as follows:**

BEGINNING at a 5/8 inch iron rod found in West R.O.W. of West Lakeside Drive, (County Road 53), for the northeast corner of Lot 11, Block C of the said Flour Bluff Estates Subdivision, as conveyed to Josephine Proctor in Document No. #2010001216 O.P.R.N.C.T., same point being the southeast corner of the said Lot 12, Block C, Flour Bluff Estates Subdivision;

THENCE North 61°37'16" West, departing the west R.O.W. of the said West Lakeside Drive, along and with the common boundary of the said Lot 11, Block C, F.B.E. and the herein described tract, a distance of 70.23 feet to a 5/8" iron rod found at a fence corner for the southeast corner of the remaining portion of Lot 12, Block C, as conveyed to Deborah Krause by Document No. #C05-4301-E Probate Records of Nueces County Texas, same point being the southwest corner of the herein described 0.2435 of an acre tract;

THENCE North 28°28'18" East, departing the common boundary of the said Tract 1, Block C, F.B.E. and the Tract 2, Block C, F.B.E., along and with the common boundary of the said remaining portion of Lot 12 (Krause Tract) and the herein described 0.2435 of an acre tract, a distance of 145.66 feet to a 5/8" iron rod found for a point in the west R.O.W. of Military Drive for the northwest corner of the herein described 0.2435 of an acre tract;

THENCE South 61°31'42" East, along and with the common boundary line of the west R.O.W. of the said Military Drive and the herein described tract, a distance of 23.28 feet to a 5/8" iron rod found for a corner of the herein described 0.2435 of an acre tract:

THENCE South 12°07'42" East, along and with the common boundary line of the west R.O.W. of the said Military Drive and the herein described tract, a distance of 132.05 feet to a nail found in the north R.O.W. line of the said West Lakeside Drive same point being in a horizontal curve to the left having a radius of 173.04 feet for the east corner of the herein described 0.2435 of an acre tract;

THENCE Along and with a circular curve to the left having arc length of 60.05 feet, delta angle of 19°53'06", chord bearing and distance of South 69°11'34" West, 59.75 feet to the "POINT OF BEGINNING" and containing within these metes & bounds 0.2435 of an acre (10,606 Square Feet) of land, more or less.

Property Address: **902 West Lakeside Drive
Corpus Christi, TX 78418**

MORTGAGE SERVICING INFORMATION:

The Mortgage Servicer, if not the Current Mortgagee, is representing the Current Mortgagee pursuant to a Mortgage Servicing Agreement.

Current Mortgagee: **FVX LLC in trust for Morgan Stanley Bank, N.A.**
Mortgage Servicer: **Shellpoint Mortgage Servicing**
Mortgage Servicer **75 Beattie Place**
Address: **Greenville, SC 29601**

SALE INFORMATION:

Date of Sale: **June 2, 2026**
Time of Sale: **10:00 AM or within three hours thereafter.**
Place of Sale: **"COURTHOUSE DOOR" IS DESIGNATED AS THE SOUTH ENTRANCE OF THE NUECES COUNTY COURTHOUSE FACING LIPAN STREET OR AS DESIGNATED BY THE COUNTY COMMISSIONER'S OFFICE.**

Substitute Trustee: **Tejas Corporate Services, LLC, and Padgett Law Group, any to act**
Substitute Trustee **546 Silicon Dr., Suite 103**
Address: **Southlake, TX 76092**

APPOINTMENT OF SUBSTITUTE TRUSTEE:

THIS INSTRUMENT APPOINTS THE SUBSTITUTE TRUSTEE(S) IDENTIFIED TO SELL THE PROPERTY DESCRIBED IN THE SECURITY INSTRUMENT IDENTIFIED IN THIS NOTICE OF SALE THE PERSON SIGNING THIS NOTICE IS THE ATTORNEY OR AUTHORIZED AGENT OF THE MORTGAGEE OR MORTGAGE SERVICER.

The undersigned is the attorney for the mortgagee and/or mortgage servicer, and in such capacity does hereby remove the original trustee and all successor substitute trustees under the above-described Deed of Trust and appoints in their place, any to act, those substitute trustees identified in the SALE INFORMATION section of this notice, whose address is c/o Padgett Law Group, 546 Silicon Dr., Suite 103, Southlake, TX 76092 as Substitute Trustee, who shall hereafter exercise all powers and duties to set aside the said original trustee under

said Deed of Trust, and further does hereby request, authorize, and instruct said Substitute Trustees to conduct and direct the execution of remedies set aside to the beneficiary therein.

WHEREAS, the above-named Grantor(s) previously conveyed the above described property in trust to secure payment of the Note set forth in the above-described Deed of Trust; and

WHEREAS, a default under the Note and Deed of Trust was declared, such default was reported to not have been cured, and all sums secured by such Deed of Trust are declared immediately due and payable.

WHEREAS, the original Trustee and any previously appointed Substitute Trustee under said Deed of Trust has been hereby removed and the herein described Substitute Trustees, have been appointed as Substitute Trustees and authorized by the Mortgage Servicer to enforce the power of sale granted in the Deed of Trust; and

WHEREAS, the undersigned law firm has been requested to provide these notices on behalf of the Current Mortgagee, Mortgage Servicer and Substitute Trustees;

NOW, THEREFORE, NOTICE IS HEREBY GIVEN of the foregoing matters and that:

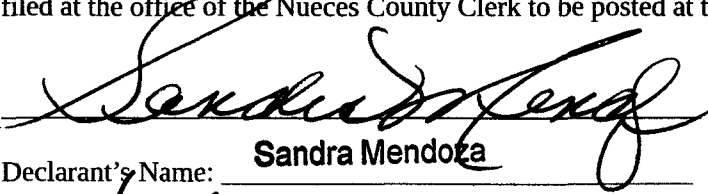
1. The maturity of the Note is hereby accelerated, and all sums secured by the Deed of Trust are declared to be immediately due and payable.
2. The herein appointed Substitute Trustees, any to act, as Substitute Trustee will sell the Property to the highest bidder for cash on the date, at the place, and no earlier than the time set forth above in the Sale Information section of this notice. The sale will begin within three hours after that time.
3. *The Financial Crimes Enforcement Network ("FinCEN"), a bureau of the U.S. Department of Treasury, now requires the collection, certification and reporting of certain information relating to non-financed transfers of real property to legal entities and/or trusts, which such information the successful bidder(s) shall be expected to provide to the auctioneer at the time of the subject sale. Interested bidders with questions regarding the necessary information to be provided are hereby directed, generally, to FinCEN's website and, more specifically to the FinCEN Real Estate Report located in the forms bank thereof.*
4. This sale shall be subject to any legal impediments to the sale of the Property to any exceptions referenced in the Deed of Trust or appearing of record to the extent the same are still in effect and shall not cover any property that has been released from the lien imposed by the Deed of Trust.
5. No warranties, express or implied, including but not limited to the implied warranties of merchantability and fitness for the particular purpose shall be conveyed at the sale, save and except the Grantor's warranties specifically authorized by the Grantor in the Deed of Trust. The property shall be sold "AS-IS", purchaser's will buy the property "at the purchaser's own risk" and "at his peril" and no representation is made concerning the quality or nature of title to be acquired. Purchasers will receive whatever interest Grantor and Grantor's assigns have in the property, subject to any liens or interest of any kind that may survive the sale. Interested persons are encouraged to consult counsel of their choice prior to participating in the sale of the property.
6. If the sale is set aside for any reason, the Purchaser at the sale shall be entitled only to a return of the funds paid. The Purchaser shall have no further recourse against the Mortgagor, the Mortgagee, the Mortgagee's Attorney, or the duly appointed Substitute Trustee.



Michael J. Burns / Paige Jones/ Gabrielle A. Davis/ Ronny George

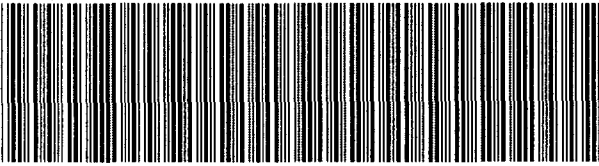
CERTIFICATE OF POSTING

My name is Sandra Mendoza, and my address is c/o Padgett Law Group, 546 Silicon Dr., Suite 103, Southlake, TX 76092. I declare under penalty of perjury that on 4.16.26 I filed at the office of the Nueces County Clerk to be posted at the Nueces County courthouse this notice of sale.


Declarant's Name: Sandra Mendoza

Date: 4.16.26

Padgett Law Group
546 Silicon Dr., Suite 103, Southlake, TX 76092
(850) 422-2520



VG-38-2026-2026000231

Nueces County
Kara Sands
Nueces County Clerk

Instrument Number: 2026000231

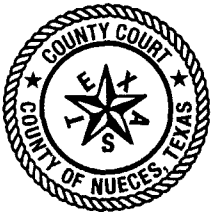
Foreclosure Posting
FORECLOSURE NOTICE

Recorded On: April 16, 2026 09:52 AM

Number of Pages: 5

" Examined and Charged as Follows: "

Total Recording: \$7.00



STATE OF TEXAS
Nueces County

I hereby certify that this Instrument was filed in the File Number sequence on the date/time printed hereon, and was duly recorded in the Official Records of Nueces County, Texas

Kara Sands
Nueces County Clerk
Nueces County, TX

Kara Sands

***** THIS PAGE IS PART OF THE INSTRUMENT *****

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY
because of color or race is invalid and unenforceable under federal law.

File Information:

Document Number: 2026000231
Receipt Number: 20260416000055
Recorded Date/Time: April 16, 2026 09:52 AM
User: Lorena G
Station: CLERK04.nuecescc.local

Record and Return To:

PIONEER LAND SERVICES
3737 REYNOSA ST

CORPUS CHRISTI TX 78416-1528